IT is hereby notified that the Minister of Finance and Economic Development, in terms of section 235 as read with section 120 of the Customs and Excise Act [*Chapter 23:02*], has made the following regulations:—

1. These regulations may be cited as the Customs and Excise (Suspension) (Amendment) Regulations, 2022 (No. 264).

2. These regulations shall come into effect on 1st January, 2023.

3. The Customs and Excise (Suspension) Regulations, 2003, published in Statutory Instrument 257 of 2003 (hereinafter called "the principal regulations"), are amended in section 9Q ("*Suspension of duty on powdered milk imported by approved importers*") as follows—

(a) by the deletion of "31st December, 2022" and the substitution of "31st December, 2025"; and

(b) by the deletion of the Schedule to the section and the substitution of—

	Annual allocation in kilograms for both full cream milk powder (FCMP) and skimmed milk powder (SCM)					
"Company name	**Year 2023**		**Year 2024**		**Year 2025**	
	FCMP	**SMP**	**FCMP**	**SMP**	**FCMP**	**SMP**
Competitive Brand Shapers, trading as CBS	39,460	18,085	19,735	9,045	4,940	2,260
Dairibord Zimbabwe (Private) Limited	697,560	697,560	348,780	348,780	87,200	87,200
Dendairy (Private) Limited	426,000	426,000	213,000	213,000	53,250	53,250
Corked Spin Investments	22,600	22,600	11,300	11,300	2,825	2,825
Kefalos Cheese Products	231,780	331,115	115,890	165,555	28,970	41,390
Kershelmar Dairies	159,100	0	79,540	0	19,900	0
Milkzim (Private) Limited	2,465	1,230	1,200	600	310	155
Nestle Zimbabwe (Private) Limited	538,970	44,725	269,480	22,360	67,370	5,590
Prodairy (Private) Limited	892,870	142,860	446,490	71,440	111,585	17,850"

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4. Section 9MM ("*Suspension of duty on raw cheese imported by approved importers*") of the principal regulations is amended as follows—

(a) by the deletion of "31st December, 2022" and the substitution of "31st December, 2025";

(b) by the deletion of the Schedule to the section and the substitution of—

"APPROVED IMPORTERS OF RAW CHEESE ELIGIBLE FOR SUSPENSION OF DUTY

Name of company	**Annual allocation in kilograms for raw cheese**		
	2023	**2024**	**2025**
Corked Spin Investment	9,850	4,950	1,230
Kefalos Cheese (Private) Limited	147,650	73,800	18,470".

5. The principal regulations are amended by the insertion of a new section after section 9PP to read as follows—

"*Suspension of duty on capital equipment imported by tourism operators*

9QQ (1) In this section—

"exclusive use in the tourism business" means goods of a capital nature being imported entirely for the purposes of the tourism business in respect of their specified use, other than as a benefit to the employees or to the owner, excluding consumables;

"tourism operator" means a person or organisation—

(a) registered with the Zimbabwe Tourism Authority and the Zimbabwe Council of tourism for a period of not less than two years; and

(b) approved by the Minister responsible for finance.

Notwithstanding the provisions of (a) and (b) in the definition of tourism operator, the Minister

may approve a person or organisation as a tourism operator in cases where such operator invests in areas where no investments in tourism have been made.

(2) The Minister in consultation with the Minister responsible for tourism shall approve a suspension of duty in respect of—

(a) new capital equipment for the exclusive use in the tourism business for—

(i) expansion; or

(ii) modernisation; or

(iii) renovation of hotels or lodges but excluding restaurants and cafes located outside hotels and lodges;

(b) boat equipment and other capital equipment imported or taken out of bond for the exclusive use in the tourism business by tourism operators registered with the Zimbabwe Tourism Authority and the Zimbabwe Council of tourism.

(3) The Commissioner may not grant a suspension of duty to an approved tourism operator on the basis of none compliance with section 34C of the Revenue Authority Act [*Chapter 24:11*].

(4) An approved tourism operator shall, when effecting entry on importation, or on removal from bond of capital equipment under suspension, submit with the relevant bill of entry a declaration signed by him or her, to the effect that the capital equipment is to be used solely in the tourism operator's business.

(5) The Commissioner may authorise the transfer of the related capital equipment to another place of business of the same tourism operator.

(6) Subject to subsections (7) and (8), an approved tourism operator shall not dispose of any capital equipment imported and cleared under this section unless—

(a) written authority of the Commissioner is obtained; and

(b) payment of the duty suspended in accordance with this section has been made.

(7) The Commissioner may authorise the disposal of any capital equipment on payment of such duty, not exceeding the amount of duty suspended, as he or she thinks fit, if, in his or her opinion**,** the capital equipment cannot be economically used for the purpose for which it was entered under suspension.

(8) Duty suspended capital equipment, which would have been accidentally destroyed before being used in the approved tourism operator's business, may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent its destruction.

(9) Specified capital equipment shall be admitted under a suspension only if the approved tourism operator has furnished to the satisfaction of the Commissioner—

(a) a complete specification of each model of boat equipment being imported; and

(b) a complete list of refurbishment materials or boating equipment which are to be imported by the approved tourism operator for exclusive use in the tourism business; and

(c) a declaration that the capital equipment is to be used solely in the tourism operator's business; and

(d) the tourism operator's name as approved and registered by the Commissioner; and

(e) a valid tax clearance certificate and proof of registration in terms of the Revenue Authority Act [*Chapter 23:11*].

(10) No suspension shall be granted in terms of this section for any raw materials, any goods for manufacture or any goods that are available in the local industry at competitive prices.

(11) The minimum value of the capital equipment to be imported under this suspension in any one transaction is US$25,000.".

6. The principal regulations are amended in section 9K by the deletion of subsection (2) and the substitution of the following—

"(2) Subject to this section, a suspension of duty shall only be granted to a holder during the specific period, for mining development operations gazetted prior to 1st December, 2022, in respect of specified goods which, during the specified period, are imported by the holder for use solely and exclusively for mining development operations.

For the avoidance of doubt, no specific mining development operations shall be gazetted in terms of this section after 1st December, 2022.